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Case Number: 24STCV07875 Hearing Date: July 7, 2026 Dept: 400

MOTION TO QUASH

The Court

tenders the following tentative decision in the matter O.A., et al. v.

Jessica Devita, Los Angeles County Superior Court case number 24STCV07875,

set for hearing on July 7, 2026. O.A., J.A., and M.A. (collectively, Plaintiffs)

move for an order quashing third party subpoenas for the production of business

records served on the following parties by Jessica Devita (Defendant) pursuant

to Code of Civil Procedure sections 1985.3 and 1987.1: (1) Santa Monica Malibu

Unified School District (SMMUSD); (2) Fusion Academy (Fusion); (3) Dr. Anshu

Batra; (4) Joseph Taravella, Ph.D.; (5) Dr. Richard Boles; (7) Dr. Lev Gottlieb;

(8) UCLA Health Systems – M.R.; (9) UCLA Health Systems – Billing; (10) UCLA

Health Systems – Radiology; (11) Dr. Manny Tau, Psy. D.; (12) Westside Regional

Center (WRC); (13) Beyond Karate (BK); (14) Lagerlof, LLP; (15) Denis A. Perez,

LCSW; (16) Sinclair Broadcasting Group C/O Ct Corp. (Sinclair); and (17) Univision

Emerging Networks, LLC C/O CT Corp. (Univision). Defendant opposes the motion. The

motion is granted in part.

A.

Legal Standard

“If a subpoena requires the

attendance of a witness or the production of books, documents, electronically

stored information, or other things . . . at the taking of a deposition, the

court, upon motion reasonably made by any person described in subdivision (b) .

. . . may make an order quashing the subpoena entirely, modifying it, or

directing compliance with it upon those terms or conditions as the court shall

declare, including protective orders. In addition, the court may make any other

order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).) Any party to the action may make such a motion. (Id., § 1987.1, subd. (b)(1).) “Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Id., § 1985.3, subd. (g).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a “more limited scope of discovery available from nonparties.” (Ibid.)

“In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

B. Discussion

Plaintiffs move to quash or reduce the scope of deposition subpoenas served on various third parties by Defendant pursuant to Code of Civil Procedure section 1985.3, subdivision (g). These subpoenas seek educational and medical records related to O.A., medical records related to J.A., and employment records related to M.A. The Court will address each category of subpoenas in turn.

First, Defendant has subpoenaed SMMUSD and Fusion for all education records related to O.A.'s time as a student. These include his academic record, special education records, records related to his disability, attendance records, documents related to any investigation of O.A.'s conduct, documents in his disciplinary file, documents related to his appeal of his suspension, and documents related to hearings, meetings, and phone calls. (Exs. 1, 2.) Defendant argues that these records are relevant because Plaintiffs have put O.A.'s school history and conduct at issue by alleging that he was well behaved.

Plaintiffs object to this request on the grounds that O.A.'s privacy rights are implicated. (Cal. Const., Art. 1.) A party asserting a privacy right must "establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 (Williams).) The party seeking information may then "raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy." (Ibid.) The Court then balances those competing considerations. (Ibid.)

Here, O.A.'s privacy rights are implicated by Defendant's desired intrusion into his educational records. Defendant seeks to demonstrate that Defendant did not know her statements were false or defamatory based on evidence of O.A.'s reputation at school. But information about O.A.'s reputation at school more generally will not shed light on what Defendant knew about O.A. at the time she made her statements. Thus, the only relevant records are those relating to Plaintiff's interactions with M.S. specifically, as such evidence will help determine the truthfulness of Defendant's publications. Accordingly, the Court modifies the SMMUSD subpoena to only seek items 6 and 14 related to O.A.'s interactions with M.S. (Ex. 1.) It additionally modifies the Fusion subpoena to only seek items 7, 15, and 16 related to O.A.'s interactions with M.S. and his tuition payments, which he has put at issue by claiming them as damages.

Second, Defendant has subpoenaed Dr. Anshu Batra; (1) Dr. Joseph Taravella, Ph.D.; (2) Dr. Ruth Ziemba; (3) Dr. Richard Boles; (4) UCLA Health Systems – M.R.; (5) UCLA Health Systems Billing;

and (6) UCLA Health Systems Radiology for O.A.'s medical records. These subpoenas seek all medical records, correspondences, test results, and billing documents from the various healthcare providers. (Exs. 3–6, 8–10.) Defendant argues that these records are relevant because Plaintiffs have alleged that they treated O.A. and provide a basis for his medical damages. Once again, O.A.'s right to privacy is invoked because of the sensitive nature of these medical records. The Court agrees with Defendant that an important countervailing interest exists here, where Plaintiffs have put these records at issue by claiming damages. The Court also notes that the federal court in the concurrent action allowed for discovery of the same documents spanning from 2018 to the present. Although the federal court records are so heavily redacted as to be almost meaningless, the Court accepts the representation that these same documents were ordered produced in that case. If they have already been produced then any privacy concerns are lessened substantially.

The Court finds the federal court conclusion reasonable, and modifies the present subpoena to apply to all documents listed in the relevant subpoenas but spanning from 2018 rather than 2016 to the present.

Third, Plaintiffs move to quash

the subpoenas of Dr. Gottlieb and Dr. Tau, as they seek premature expert discovery. (Exs. 7, 11.) Indeed, these are Plaintiffs' retained experts. And expert witness information is properly obtained via Code of Civil Procedure section 2034.210. Thus, the present subpoenas are premature and quashed.

Fourth, Defendant has subpoenaed

WRC seeking all documents related to services it provided O.A. (Ex. 12.) Defendant notes that Plaintiff has used WRC to demonstrate O.A.'s cognitive, developmental, and physical condition. However, the records at issue are private documents related to the provision of disability services. Defendant may still obtain some information based on O.A.'s alleged damages arising out of him no longer being able to attend WRC. Thus, consistent with the federal court, this Court finds the subpoena proper. Thus, Plaintiff's motion to quash with respect to WRC is denied.

Fifth, Defendant has subpoenaed BK

seeking his employment records and records related to his behavior while attending classes there. Similarly to the SMMUSD and Fusion subpoenas, O.A.'s behavior and reputation prior to Defendant's statements is not relevant to show what she knew about him. But Plaintiff's employment records are still properly sought based on his damages stemming from loss of employment at BK. Thus, the

subpoena is modified to only encompass request 1. (Ex. 13.)

Sixth, Defendant's subpoena to

Lagarlof, LLP for O.A.'s conservatorship records is improper, as such records are confidential. Defendant makes no argument in support of this subpoena, and it is quashed. (Ex. 14.)

Seventh, Defendant's subpoena to Denis

A. Perez, LCSW is improper because J.A. has not put his medical files at issue. (Ex. 15.) He is only seeking "garden variety" emotional distress damages (which the Court understands means general emotional distress but not evidence of treatment or diagnosis by medical doctors or other professionals). and will not offer evidence from any physicians at trial. Thus, the documents sought by Defendant are not relevant. Accordingly, the subpoena is quashed.

Eighth, Defendant seeks the

employment records of M.A. from Sinclair and Univision. (Exs. 16, 17.) While individuals have a protected privacy interest in their employment records, here M.A. has placed his at issue by claiming damages for lost bonuses, poor performance reviews, and lost pay. (See Board of Trustees of Leland Stanford Jr. University v. Superior Court (Dong) (1981) 119 Cal.App.3d 516, 528–530.) Thus, the subpoenas are proper and the motion to quash is denied.

Conclusion:

The Court (1)

modifies the SMMUSD subpoena to only include requests 6 and 14; (2) modifies the Fusion subpoena to only include items 7, 15, and 16; (3) modifies subpoenas 3–6 and 8–10 to apply to the period from 2018 to the present; (4) quashes subpoenas 7, 11, 14, and 15; (5) denies Plaintiffs' motion to quash with respect to subpoenas 12, 16, and 17; and (6) modifies subpoena 13 to only encompass request 1.